

RAJWANT RAWAT

the adjacent Quwwat-ul-Islam mosque.

**WHO'S BEHIND IT**

Lawyer Vishnu Shankar Jain, son of Lucknow-based lawyer Hari Shankar Jain, on whose plea in 1993 the court had ordered that Hindus be allowed to worship at the Babri Masjid site, filed the petition demanding restoration of Hindu and Jain deities and the right to worship in the Qutub Minar complex.

**"The deity survived for the last 800 years without worship. Let it survive like that," the district judge hearing the petition said**

**WHERE IT'S HEADED**

Though there has been no official confirmation, the culture ministry has reportedly asked ASI to conduct the iconography of idols at the Qutub complex. Maulana Sher Mohammad, the Imam of the Quwwat-ul-Islam Mosque, has claimed in media that ASI officials asked him to stop offering namaaz from May 13.

During hearings demanding the right to worship in the Qutub Minar, ASI opposed the suit, saying the Qutub Minar was not a place of worship, and that the existing status of the monument could not be altered. UNESCO declared the Qutub Minar a World Heritage Site in 1993.

On May 24, during the final hearings of the case, additional district judge Nikhil Chopra asked under what legal remedy can the petitioners claim a right of restoration "for something that happened 800 years ago". While agreeing the "existence of idols is not in dispute", the additional district judge, in a lighter vein, said: "The deity survived for the last 800 years without worship. Let it survive like that."

**–Kaushik Deka**

stepped in on September 9, criticised the order and stayed the survey. This summer, things took on a new dimension amid a dizzying blur of suits, appeals and challenges. On April 18, women petitioners filed a suit in another Varanasi court, demanding permission to worship Maa Shringar Gauri, and "Ganesh, Hanuman and Nandi idols" they claimed existed inside the mosque. The court promptly ruled that an advocate commissioner be appointed to survey the complex; and the next day, it directed that the inspection be video-recorded.

The whole judicial hierarchy—a local court, the high court (which by May 12 was fending off a petition to have the Taj Mahal basement opened for examination), and the Supreme Court—refused to stay the survey and it was duly conducted on May 14-16. Amid media leaks and frenzied reports that the surveyors had found a "Shivalingam" in the wuzu-khana—and counters that it was merely a defunct fountain—the local court ordered the area sealed. On May 16, the mosque committee finally approached the Supreme Court, arguing that the mosque videography "clearly interdicted" the Places of Worship Act. It was here that a three-judge bench, headed by Justice D.Y. Chandrachud, allowed the critical leeway with a reasoning—saying there was no harm in "ascertaining" the historical facts, as the 1991 law did not expressly prohibit it. It directed the district magistrate to secure the precincts around the "Shivalingam", while allowing Muslims to offer prayers, and also deemed it fit to transfer the case to a more "experienced" district court.

## A PANDORA'S BOX

Many legal experts are dismayed by the Supreme Court's approach. "The Places of Worship Act was brought in precisely to prevent such controversies from erupting, in full knowledge of their potential to do so, and to cause harm.